

EDUCATION LAW OF THE REPUBLIC OF AZERBAIJAN

The present Law prescribes the basic principles of public policy in ensuring the citizens' educational rights as established by the Constitution of the Azerbaijan Republic and the general conditions for regulating the educational activities. It sets the foundation for the adoption of corresponding laws and other legislative acts at various levels of education. Secular and continuous in nature, education in the Azerbaijan Republic is a strategically important area of priority, which reflects the interests of citizens, society, and the state. Education in the Azerbaijan Republic is based on the International Conventions on Human Rights, as well as international treaties that the Azerbaijan Republic is party to. It develops through integration into the global education system whilst prioritizing national, moral, and universal values in education system.

Chapter I

Main Definitions

Article 1. Main Concepts

1.0. The main concepts used in this Law define the following meanings:

1.0.1. Matriculate – an individual who submits the relevant documents to the higher or secondary vocational-technical education institution for admission;

1.0.2. Merit-based stipend – a stipend established by the state, an entity or an individual for the students who have demonstrated exceptional scholastic performance in education, actively participated in the social-cultural life of an academic institution;

1.0.3. Adjunct studies (Post-graduate military studies) – the training of highly specialized scientific-pedagogic personnel in military academic institutions considered as an equivalent to doctoral studies.

1.0.4. Academy - a higher educational institution that implements higher and in-service training programs, and conducts fundamental and applied scientific research;

1.0.5. Accreditation – a procedure to determine and approve the adherence of an educational institution's activities to the national education standards, and its status.

1.0.6. Attestation – a procedure for evaluating the learning achievements of students and the teachers' performance at each phase and level of education.

1.0.7. Bachelor – a higher vocational-professional degree conferred to the individuals who have completed Bachelor's Degree

1.0.8. Bachelor's Degree – the first level of higher vocational-professional education that trains a broad range of specialists in respective majors.

1.0.9. Distance learning – a type of education where the teaching process is organized through electronic, telecommunications, software and technical tools.

1.0.10. Dissertation – a science thesis which is submitted for earning a corresponding academic degree.

1.0.11. Dissertation student – an individual who is working on dissertation

1.0.12. Doctoral student – an individual enrolled in the doctoral program

1.0.13. Doctor's Degree – the highest degree in higher education, a type of advanced scientific and pedagogic training that provides conferment of the doctorate degree.

1.0.14. Associate Professor – an academic title conferred to the teachers in higher educational institutions and an elective office.

1.0.15. Doctor of Science – the highest academic degree conferred during the second stage of the doctorate program by the fields of science.

1.0.16. Home Learning – delivery of the general education based on the relevant teaching programs (curricula)

1.0.17. Further education – an education based on supplementary education programs provided to meet the citizens' comprehensive educational needs.

1.0.18. Doctor of Philosophy – a scientific degree conferred during the first phase of doctorate programs by the respective field of study.

1.0.19. Individual Learning – a type of education for the students who have not been enrolled in educational institution for a long time due to various reasons, also for the students who have an exceptional talent in a certain area of study.

1.0.20. Professor-Emeritus (Doctor) – an honorary academic title/degree conferred a higher educational institution to professors and associate professors distinguished for their scientific and pedagogic work and experiences, as well as the scholars and public figures of foreign countries that have made a special contribution to the global science and education.

1.0.21. Formal education – education which concludes with the issuance of a state education document.

1.0.22. Gymnasium – a general education institution that offers educational services on various subjects for students who are primarily recognized for their talent and capacity in humanities.

1.0.23. Informal education – a type of acquiring knowledge through self-directed learning.

1.0.24. Innovation – progressive novelties developed based on various institutions, scientific researches.

1.0.25. Institute (higher education institution) – a higher education institution, either independent or a structural unit of the universities, which carries out the training of specialists with higher education on specific specialties, as well as provides in-service training programs.

1.0.26. Major – a field of study specified in the corresponding academic document, type of activity within a common specialty.

1.0.27. Specialization – a professional specialty obtained on components of the corresponding vocational and professional education major.

1.0.28. Campus – an educational complex (town) that houses pertinent material and technical foundation, and an infrastructure.

1.0.29. College – an educational institution that provides educational services based on secondary professional and vocational programs and has the right to confer sub-bachelor vocational and professional degree.

1.0.30. Conservatoire – a higher educational institution which trains highly specialized experts on the field of music.

1.0.31. Non-formal education – a type of education received as a result of various courses, clubs and individual courses, wherein no state education document is issued upon completion.

1.0.32. License – a special permit issued by the state for providing educational operations.

1.0.33. Lyceum – a general education institution at the basic and secondary education levels which provides for educational services for talented students under the respective fields of study.

1.0.34. Master's Program – the second level of higher education.

1.0.35. Master – a higher academic professional degree conferred to the individuals who have completed the Master's Program.

1.0.36. Nostrification – a procedure for identification (recognition) of the equivalent of an academic document.

1.0.37. Professor – a scientific title conferred to experienced doctors of science (except for the fields which require special aptitude) for their advanced scientific and academic achievements, an elective office in higher educational institutions.

1.0.38. Residency – a basic higher education program that carries out specialist training in medical majors

1.0.39. Independent (external) education – a type of education which allows the individuals that have stayed out of general education to receive education or grants a right to the learners to finish any phase of general education before the regular period.

1.0.40. Sub-bachelor's degree – a professional-vocational degree conferred to the graduates of the secondary professional-vocational education.

1.0.41. Educational credit – the unit of measurement allocated for the mastery of a certain course in accordance with its content and the scope.

1.0.42. Teaching plan – the main regulatory document, which determines the amount of teaching hours allocated both for the courses and extra-curricular activities in respective level of education.

1.0.43. Education – the process of mastering systematized knowledge, skills and abilities and its results.

1.0.44. Educational investments – investing resources for development of education

1.0.46. Teaching program (curriculum) – the national document which specifies learning outcomes and content standards, courses taught, number of weekly teaching and extracurricular activity hours, regulation of teaching process, assessment and monitoring of learning outcomes for each level of education.

1.0.46. Educational product – educational innovations, original educational and teaching programs, system of teaching methods, educational modules, educational projects

1.0.47. Educational institution – an institution which carries out the educational process based on corresponding curricula and issues the respective state documents.

1.0.48. Autonomy of an educational institution – independence granted to state and municipal educational institutions by the respective executive power body.

1.0.49. Educational franchising – a system of complex services for the realization of educational products in domestic or international educational market under corresponding conditions (retaining the official title and the trademark of an educational institution, protection of copyright, etc.)

1.0.50. Doctor – a higher vocational-professional degree conferred to the graduates who have received basic higher medical education.

1.0.51. Doctor-Specialist – a higher vocational-professional degree conferred to the individuals who have completed residency based on the respective curricula.

1.0.52. Tutor – academic advisor in higher educational institutions

1.0.53. University – a leading multi-profile higher educational institution, which carries out a broad range of specialist training at all levels of higher education, in-service training

programs, and conducts fundamental and applied scientific research.

Article 2. Legislation on Education of the Azerbaijan Republic

2.1. The legislation on education of the Azerbaijan Republic consists of the Constitution of the Azerbaijan Republic, this Law, other laws that are relevant to education sector, normative and legal acts, and the international treaties of which Azerbaijan is party to.

2.2. The main objectives of the legislation on education are to provide for and protect the constitutional rights of the citizens with respect to education sector, to properly determine the rights and responsibilities of executive bodies in the sphere of education, learners and teachers, individuals and legal entities, to regulate the relations between them, and to create the legal basis for independent functioning and development of the education system.

2.3. This Law is not applicable to the religious educational institutions operating within the Azerbaijan Republic, as well as educational institutions of the diplomatic representatives and consulates of foreign countries.

Article 3. Key Principles of the National Policy on Education

The key principles of the national policy on education are as follows:

3.0.1. Humanism – Recognizing as a priority the national and universal values, the unrestrained development of the individual, human rights and liberties, health and security, virtues of care, respect, and tolerance for the environment and the people.

3.0.2. Democracy – Cultivating the learners in the spirit of free thinking, expansion of the power and academic independence to organize and administer education under state-social basis, increasing the autonomy of educational institutions.

3.0.3. Equality – creating equal opportunities for all citizens to receive education and providing for the right to education for them.

3.0.4. National consciousness and secularism – establishment and development of a secular education system on the basis of protecting national and national and universal values, and ensuring their dialectic harmony.

3.0.6. Efficiency – the organization of education and the scientific works with the contemporary methods oriented towards development, effectiveness, and which are based on outcomes.

3.0.7. Continuity, unity, and perpetuity – under the existing educational standards, curricula, and syllabi, the opportunity to receive education at several levels, ensuring a close mutual dialectic link among various levels of education, and its consistent lifelong continuity.

3.0.8. Legacy – the consistent conveyance of knowledge and experience obtained in the field of education onto the next generation (cycle).

3.0.9. Liberalization – extending the openness of the education area and educational activity;

3.0.10. Integration – the development of national education through its efficient integration to the global education system, adaptation, and combination.

Article 4. The main goals of education

The main goals of education in the Azerbaijan Republic are as follows:

4.0.1. To develop citizens and personalities who understand his/her responsibility and accountability before the Azerbaijan Republic and the state, respects his/her nation's national traditions and the principles of democracy, human rights and liberties, who is committed to the ideas of patriotism and loyal to Azerbaijanism, and who is capable to think independently and creatively.

4.0.2. To train progressively thinking and competitive specialists and personnel, who protect and promote national, moral, and universal values, enjoy a broad world outlook, are able to assess the initiatives and innovations, and have mastered theoretical and practical knowledge.

4.0.3. To ensure the acquisition of systematized knowledge, skills, and abilities, and the continual improvement of the specialty, to prepare the learners to social life and efficient labor activity.

Article 5. State Guarantee of the Right for Education

5.1. The state guarantees to create corresponding conditions for each citizen and does not permit for deprivation of any level and form of education.

5.2. The State secures the creation of equal opportunities for each citizen and doesn't tolerate for any discrimination, regardless of the individual's gender, race, language, religion, political views, nationality, social status, background, and state of health.

5.3. The State guarantees equal opportunities for men and women in recruitments for all educational institutions, regardless of their type of property, appointing to or election for positions, stimulating and awarding the labor, admission of the learners to educational

institutions, providing them with scholarships, selection of curricula and majors, assessment of knowledge, providing the graduates with jobs, continuing education at the next level, furthering the major, etc.

5.4. The state secures the right to compulsory general secondary education for each citizen. Every student enrolled in the public educational institutions enjoys the right to free-of-charge general education. The state sets forth the right to receive a one-time free-of-charge education at secondary vocational-professional education and each level of higher education in accordance with the legislation.

5.5. In accordance with labor market demands, the state makes a public requisition to the educational institutions for the training of professional specialists and provides the graduates with employment opportunities.

5.6. The state guarantees for the continuation of education for talented people, regardless of their financial state, and provides for necessary conditions for the people in need of social protection to receive education.

5.7. The state guarantees protection and development of national educational traditions, and the introduction of innovations.

5.8. The state implements special projects and programs related to the education of Azerbaijanis living abroad.

Article 6. National Standards of Education

6.1. National standards of education are a set of comprehensive norms developed in accordance with the scientific and pedagogic principles, meeting the demands of the individual, society, and the state. They contain common state requirements for a certain period of time (not less than 5 years).

6.2. National standards of education are determined by taking into account the internationally established progressive criteria in education, national and universal values.

6.3. Development, approval, and effectiveness of national standards of education are determined by the respective executive authority.

6.4. National standards of education determine the academic content, management, its material, technical, and teaching foundation, infrastructure, teachers' quality indicators, the knowledge, skills, and aptitude of the learners at each level of education.

6.5. The organization of education is arranged in accordance with respective state standards in all educational institutions.

6.6. Respective national standards of education are taken as the foundation while assessing the operations of an educational institution, the quality of education and the graduates' achievements, accreditation and the final attestation of the graduates.

6.7. Special national standards are determined for the education of individuals with physical restrictions.

Article 7. Language of study

7.1. The language of instruction in educational institutions of the Azerbaijan Republic is the state language – the Azerbaijani language.

7.2. In exceptional cases (international treaties, or based on the agreement with a respective executive authority), at the request of citizens and founders of educational institutions, the instruction can be delivered in other languages under respective state standards of education on condition that the Azerbaijani language, literature, history, and geography will be instructed, as well.

7.3. Preparatory classes and courses are organized for the learners who have poor mastery of Azerbaijani in accordance with the rules set by the respective executive authority and the educational programs.

Chapter II

Educational system of the Azerbaijan Republic

Article 8. The structure of the educational system

8.0. The educational system includes the following:

8.0.1. All educational institutions, other institutions that deal with educational and instructional process and provide educational services, scientific research institutes and information centers, project, production, clinical, public catering, medical-prophylactic, and pharmaceutical units, sports, recreational and health centers, campuses, cultural-educational institutions and organizations, libraries, dormitories, camps, and other infrastructure that support educational activities and its advancement.

8.0.2. Educational management bodies and the institutions, and organizations functioning under them.

8.0.3. Public and non-governmental organizations, associations, societies, scientific-methodological councils, and other institutions that are involved in educational activities.

Article 9. The quality standards of education

9.1. The level of education quality is determined in accordance with the system of corresponding quality indicators (educational programs – curricula, the readiness level of matriculates, material and technical foundation, infrastructure, information resources, professionalism and scientific-pedagogic level of educators, progressive teaching technologies, etc.) by each academic level, having adjusted to the principles of international and European education systems under the national educational standards adopted in the country.

9.2. The level of personnel readiness in educational institutions is determined by the competitiveness of the graduates in national and international labor markets, and their role in the social and economic development of the country.

9.3. The level of education quality stems from the socio-political, socio-economic, scientific and cultural development needs at each historical period, and is assessed respectively by the accreditation services.

Article 10. Educational program (curriculum)

10.1. The curriculum defines the content and mastery rules of education by various educational levels and areas of education in accordance with the respective national standards.

10.2. The curriculum encompasses the teaching plans, teaching programs by subjects, recommendations on methodological support, assessment and other respective teaching technologies.

10.3. The curricula encompass all levels and scope of education which are implemented in the Azerbaijan Republic.

10.4. The duration of implementing these curricula is determined by the respective executive authority.

10.5. Respective curricula are used for in-service teacher training, distance learning, and other special forms of learning.

10.6. Special curricula are developed and implemented for the students with limited with health opportunities, learners who have needed long-term treatment, in order to bring up their upbringing, education, treatment, social adaptation, and integration into social life.

10.7. International curricula are also implemented in the Azerbaijan Republic. Training of the staff under the international curricula is regulated under the respective legislation and the charters of educational institutions.

Article 11. General requirements for educational content and organization

11.1. The general requirements on the content and organization of education are as follows:

11.1.1. To develop the necessary skills in learners to adapt to contemporary requirements and conditions, to be competitive, to live and function in information society, and to communicate.

11.1.2. To take the responsibility, to make collegial decisions, to participate in operations and development of democratic institutions, to become an independent, creative personality and citizen.

11.1.3. To ensure that the learners receive continuous learning, to acquire the knowledge and world outlooks that is renewed constantly, and is based on contemporary standards, to more efficiently meet the needs and grow, and that the life-long learning is open and accessible for everyone.

11.1.4. To develop the skills necessary to master highly intellectual level and practical working ability, new technologies, and to quickly steer in the flow of information.

11.1.5. To create a real opportunity for meeting the demands of society for highly skilled and competitive human resource potential.

11.1.6. To ensure that the organization of the educational process at educational institutions is based on respect for the dignity of learners and teachers, and that any type of physical and psychological violence against the learners is not permissible.

11.2. The general requirements with respect to the content of education and the organization of educational process are governed by this Law and other normative-legal acts.

Article 12. Types of education

12.1. The following forms of study are carried out in the Azerbaijan Republic:

12.1.1. Formal

12.1.2. Non-formal

12.1.3. Informal

12.2. The rules for the arrangement of formal education are determined by the respective executive authority.

Article 13. Forms of education

13.1. The following forms of instruction are established in the Azerbaijan Republic:

13.1.1. Stationary

13.1.2. Correspondence

13.1.3. Distance

13.1.4. Free (external)

13.2. Home education and individual learning can be organized within the framework of forms of instruction established in the Azerbaijan Republic.

13.3. The respective executive authority may promulgate other forms of instruction using facilities of modern educational technologies under necessary circumstances.

Article 14. Educational institution

14.1. The organizational and legal forms, and status of an educational institution are established by the corresponding legislation.

14.2. Based on its forms of ownership, the following educational institutions operate in the Azerbaijan Republic:

14.2.1. State

14.2.2. Municipal

14.2.3. Private

14.3. State educational institutions in the Azerbaijan Republic do not directly seek any financial benefit.

14.4. The operations, rights, and, and duties of an educational institution is established and regulated by its Charter, taking into account this Law and the respective legislative acts of the Azerbaijan Republic.

14.5. The following types and kinds of educational institutions are established:

14.5.1. pre-school educational institutions (child care institutions, child care institution-kindergarten, kindergarten, special kindergarten).

14.5.2. general education institutions (primary, secondary, and general secondary education institutions, general education boarding schools, special schools and special boarding schools, special schools and boarding schools for children with restraining health conditions, institutions for children with special needs, schools, gymnasias, lyceums, and other institutions for talented students).

14.5.3. Out-of-school educational institutions (creativity centers for children, sports schools for children and youth, chess schools for children and youth, centers for environmental awareness and practice, centers for technical creativity, centers for tourism and ethnography, out-of-school work centers, centers for aesthetic upbringing, centers for artistic creativity, etc.)

14.5.4. institutions of primary vocational-professional education (vocational schools, vocational lyceums)

14.5.5. institutions of secondary vocational-professional education (colleges).

14.5.6. institutions of higher education (universities, academies, institutes, etc.)

14.5.7. in-service training educational institutions (universities, institutes, centers, etc.)

14.5.8. other institutions implementing educational operations

14.6. Educational institutions of different types may also operate as an educational complex and campus.

14.7. Institutions of primary and general secondary education can also operate as a small complex.

14.8. The institutions of education provide education at the expense of state budget and on a remuneration basis. The special-purpose education in the Azerbaijan Republic (military, national security and other) is carried out in respective educational institutions at the state's expense.

14.9. The establishment and activities by the political parties and religious institutions in educational institutions, educational management and other bodies are prohibited.

14.10. The uniforms and attributes of the learners in all educational institutions of the Azerbaijan Republic are established by the regulations of an educational institution.

14.11. The respective executive authority may grant a public higher educational institution the right (status) of autonomy within its framework of authority. An educational institution, which is granted the right of autonomy, is free to carry out teaching, scientific research, personnel, financial-economic, and other activities in compliance with existing legislation and its statutes.

14.12. Establishment, expansion, re-organization, and the closure of an educational institution is carried out in accordance with the rules established by the legislation.

14.13. The State ensures the development of all educational institutions, including the private educational institutions, through giving them credits, allocating grants, and granting concessions to state educational institutions in accordance with the legislation.

14.14. The material and technical basis, and educational infrastructure of an educational institution should not fail the norms established by the respective executive authority.

14.15. An educational institution is a legal entity and has an independent balance. An educational institution may have a bank account and other accounts in accordance with the respective legislation. An educational institution is independent in the performance of its administrative and financial-economic activities within the framework of existing legislation.

14.16. An educational institution has the right to establish a network of affiliate institutions both within the country and abroad (for state educational institutions, under the condition of prior agreement with the respective executive authority), to create educational unions, associations, and alliances with public organizations for the advancement and improvement of education, likewise to join similar organizations in compliance with the legislation and its statutes.

14.17. An educational institution is responsible to the citizens, society, and the state for its activities.

14.18. Higher and secondary special education institutions operating in the Republic of Azerbaijan shall connect to the "Student/Graduate" state database system.

Article 15. Founder of educational institution

15.1. Founder (founders) of the educational institutions can be the state, municipalities, legal entities, and individuals of the Azerbaijan Republic and of foreign countries.

15.2. At least 80% of the teachers and professors in educational institutions, established by the founders who are foreign citizens or foreign legal entities, should be the citizens of the Azerbaijan Republic.

15.3. The establishment rules and the list of special purpose institutions of education are decided by the respective executive authority.

15.4. A founder's liability, scope of authority, and mutual obligations with an educational institution are established and regulated by the legislation of the Azerbaijan Republic, the constituent contract, and the entity's statutes.

Article 16. Licensing and accreditation of an educational institution

16.1. Any educational institution should receive a special permit (license) from the respective executive authority under the established legislation in order to provide educational activities. State educational institutions are issued special permanent permits (license). Private and municipal educational institutions founded by the individuals and legal entities of the Azerbaijan Republic are issued special permits (license) for a 5-year period. The educational institutions founded by the foreign individuals and legal entities are issued special permits (license) for not less than 3 years.

16.2. The recognition of the licenses obtained by the foreign individuals and legal entities, their affiliate branches and representations in order to provide educational activities in their countries, in the Azerbaijan Republic is determined by the agreements signed between the states.

16.3. The accreditation of an educational institution is implemented in order to determine the adherence of the organization of educational process, material-technical resources, educational programs, human resources, financial resources and the educational infrastructure to the adopted national standards and other normative-legal requirements. An accreditation is regarded as the recognition of the status of an educational institution and the legal provision for approval of its activities for the following period (for a period of not less than provided by the Section 16.1 of the Present Law).

16.4. The accreditation of an educational institution is overseen by the state accreditation services established by the relevant executive authority. The accreditation concludes with the issuance of a corresponding quality document – a certificate.

16.5. Only the operations of educational institutions, which have registered in the Azerbaijan Republic as legal entities, received special permits (license) for activities, and accredited, are provided with legal provisions.

Article 17. Stages and levels of education

17.1. The following states and levels of education exist in the Azerbaijan Republic:

17.1.1. Pre-school education

17.1.2. General Education

17.1.2.1. Primary education

17.1.2.2. Basic education

17.1.2.3. Secondary education

17.1.3. Primary Vocational-professional education

17.1.4. Secondary Vocational-professional education

17.1.5. Higher education

17.1.5.1. Baccalaureate

17.1.5.2. Master's degree

17.1.5.3. Doctorate

17.2. Mutual connection and continuity among the different stages and levels of education are ensured. Each stage of education (except for the preschool education) concludes with the issuance of a standard state document to the graduates based on final assessment and or attestation results.

17.3. The activities under the stages and levels of education are regulated by the corresponding legislative acts. The accomplishments made by the learners in the previous stage and level are taken into account in continuing the education during the next stage and level.

Article 18. Pre-school education

18.1. Pre-school education constitutes the first state of education, and in accordance with the interests of the family and society, ensures the children's intellectual, physical, and spiritual development from the early age, their mastery of simple labor skills, revealing their talent and skills, protecting their health, and developing their aesthetic upbringing, their sensitive attitude towards nature and the people.

18.2. Preschool education is carried out under the respective educational program.

18.3. Preschool education in the Azerbaijan Republic commences at the age of 3.

18.4. Preschool preparation is necessary for the five-year-old children. The rules of organizing preschool education are established by the respective executive authority.

18.5. Preschool education is either acquired in preschool educational institutions, at establishments within general secondary education institutions, and in the families, at behest of the parents (or their legal guardians).

18.6. Appropriate methodological and diagnostic consultations, and coordination services are provided by the respective executive authority for the families that carry out the upbringing of pre-school-age children at home.

Article 19. General Education

19.1. The general education provides the learners with general basics of sciences, promoting the necessary knowledge, skills, and abilities, and preparing them for life and professional activity.

19.2. The general education enables the learners to develop physically and intellectually, to provide them with the necessary knowledge, to develop the civic-oriented thinking based on a healthy lifestyle and values, to respect national and secular values, and understand his/her rights and duties in the family, society, state, and the environment.

19.3. The general education is implemented based on the respective educational programs.

19.4. The general education in the Azerbaijan Republic is comprised of the following stages: primary, basic, and secondary education.

19.5. The duration of each stage of the general education, the rules of transition from one stage to another are established by the respective executive authority.

19.6. The general education can be provided in general secondary schools, schools with special orientation, gymnasia, lyceums, primary and secondary vocational-professional educational institutions, as well, as the schools established within higher educational institutions.

19.7. A range of extracurricular educational programs are implemented in order to enhance the learners' physical development and to advance their various creative skills.

19.8. The graduates who complete the general education with special achievements are awarded with the gold or silver medals under the rules established by the respective executive authority.

19.9. The main objectives of primary education are to promote the reading, writing, and calculation skills in learners, and develop the basic life skills on humans, society, and the nature, as well as the elements of logical thinking, aesthetic, artistic taste, and other features.

19.10. Primary education is implemented based on the respective educational program.

19.11. Primary education in the Azerbaijan Republic starts from the age of 6.

19.12. An educational institution may allow admission to exceptionally talented children at an earlier age at the request of parents or legal guardians of learners.

19.13. The objectives of basic education are to further develop the learners' oral speech and writing abilities, communication skills, cognitive abilities, and logical thinking, to acquire the relevant knowledge ideas about the subjects of included in the educational program, as well as the development of the human civilization, the skills to use modern information and communications technologies, and the ability to assess events and determine his/her future activities.

19.14. The basic education in the Azerbaijan Republic is compulsory.

19.15. The basic education is implemented based on the respective educational program.

19.16. A final assessment is carried out at the basic education level and the students who complete their education receive a corresponding state document. The document on completion of basic education constitutes the basis for continuation of education at the next level and phase of education.

19.17. Secondary education ensures a learner's realization of his/her talents and abilities, in preparation for independent life and willful choice of profession, development of active civic position, respect and tolerance for national and universal values, human rights and liberties, freely using modern information and communications technologies, and other technical means, acquisition of the basics of economic knowledge, communicating in one or several foreign languages, etc.

19.18. General secondary education presupposes the complete acquisition of the curricula at all three stages of general education. General secondary education in public educational institutions is provided free of charge.

19.19. The orientation (offering of various courses) is provided at general secondary education level (humanities, technical, science, etc.).

19.20. The general secondary education constitutes the last stage of general education and the final state attestation of the learners' knowledge assessment is carried out at this level. According to the results of attestation, the graduates are issued a standard state document, a certificate.

19.21. The document on general secondary education constitutes the basis for continuing education onto the next level.

Article 20. Primary vocational-professional education

20.1. Primary vocational-professional education is carried out in order to train professional labor force in various vocations and popular professions based on the basis of general secondary education, in compliance with the labor market demands.

20.2. Regardless of its form of ownership, primary vocational-professional education is provided in professional-vocational educational institutions and various organizations, institutions, labor exchange, employment offices, and the educational units of other respective institutions, and concludes with issuance of a primary professional degree to the graduates in respective areas.

20.3. Primary vocational-professional education is implemented based on the respective educational programs.

20.4. Graduates, who are admitted to the primary vocational-professional education following basic general education, enjoy the right to receive the general secondary education along with the professional major.

Article 21. Secondary special education

21.1. Secondary vocational-professional education provides for the training of secondary education specialists in various fields of production in accordance with the demands of the society and labor market, on the basis of basic and general secondary education.

21.2. Secondary vocational-professional education is mainly implemented at colleges and corresponding units established within the higher educational institutions, and concludes with the issuance of a sub-bachelor vocational-professional degree. The graduates from the basic secondary education entering the secondary vocational-professional education also receive the general secondary education.

21.3. Secondary vocational-professional education is organized on the basis of respective educational programs. The graduates completing secondary vocational-professional education are accordingly issued a standard state document – a diploma.

21.4. The document on completion of the secondary vocational-professional education allows for entering higher educational institutions and constitutes the basis to receive higher education in the next stage of education.

21.5. The conformity of the programs in secondary vocational-professional education with the higher education programs on the corresponding majors is ensured, and the credits

obtained by the sub-bachelors, the graduates who complete this level of education with high results, are taken into account in the higher educational institutions by the respective majors in accordance with the rules established by the corresponding executive authority.

Article 22. Higher education

22.1. Highly specialized experts and scientific-pedagogic staff are trained in the higher education level taking into account the demands of the society and labor market.

22.2. The training of specialists and scientific-pedagogic staff is carried out in three levels at the higher educational institutions of the Azerbaijan Republic:

22.2.1. Baccalaureate (except for medical education);

22.2.2. Master's degree (except for medical education);

22.2.3. Doctorate.

22.3. The baccalaureate level of education carries out a wide range of specialists with higher education on educational programs of various majors, on the basis of general secondary education and secondary vocational-professional education. The Bachelor's degree is a completed higher education. The graduates who complete Bachelor's program are issued the Bachelor higher professional-vocational degree. The graduates who receive Bachelor's degree may work in all the fields, other than scientific research and the scientific-pedagogic activity of the higher educational institutions. The content of Bachelor's program and the regulations pertaining to these programs are determined by the respective executive authority.

22.4. The master's level education envisages a deeper study of a specialization field for scientific-research or professional purposes and entitles the graduates to engage in a professional activity, scientific-research and scientific-pedagogic work. The content of and regulations pertaining to the master's education are determined by the respective executive authority.

22.5. Master's level program may only operate at the institutions of higher education with sufficient scientific-pedagogical staff, material-technical assets and educational infrastructure.

22.6. In accordance with the curricula and the national educational standards in the field of medical education, the education is divided into basic and residency and graduates receive the higher professional degrees, doctor of medicine and doctor-specialist, respectively. The content of and regulations pertaining to residency education are determined by the respective executive authority.

22.7. The master's level education in the areas of culture, music, arts, sports, architecture, design and others, which require special abilities and have distinguishing features, is only

provided in the areas that require theoretical education and research. The respective executive authority determines the list of such specialties.

Article 23. Post-graduate (doctoral) education

23.1. Doctoral level education is the highest level of higher education which develops scientific and scientific-pedagogical staff and offers advanced professional and scientific degrees.

23.2. The post-graduate education is provided through doctorate programs at the institutions of higher education and scientific establishments (or adjuncture programs at the military schools) and leads to the relevant scientific degree. The scientific degrees are conferred by the dissertation boards within the institutions of higher education and scientific establishments.

23.3. The following scientific degrees are established in the Republic of Azerbaijan:

23.3.1. Philosophy doctor – indicating the field of science;

23.3.2. Doctor of science - indicating the field of science.

23.4. The procedures for establishment of a doctorate program, admissions to the post-graduate study, conferring scientific degrees and the pertinent policies are determined by the respective executive authority.

23.5. Foreign citizens are admitted to the doctorate programs at the institutions of higher education and scientific establishments under the international agreements that the Republic of Azerbaijan is party to, as well as through contracts for paid education signed between the institution of higher education and the foreign citizen.

23.6. The individuals who complete the post-graduate studies and receive the relevant scientific degree are issued a state document – the diploma, which acknowledges that scientific degree.

23.7. Scientific-pedagogical staff from the institutions of higher education, scientific and other entities is also granted scientific degrees via the doctoral programs offered through “correspondence”. The procedures for admission of students through correspondence to the relevant departments of higher education and scientific-research institutions are determined by the respective executive authority.

23.8. The staff at the higher education institutions are granted scientific titles for their achievements in science and teaching through the approved procedure. Following scientific titles are established in the Republic of Azerbaijan:

23.8.1. assistant professor;

23.8.2. professor.

23.9. The procedures and requirements for conferring the titles of professor and assistant professor are established by the respective executive authority.

23.10. The higher education institutions in the Republic of Azerbaijan are entitled to confer the scientific titles of professor/doctor emeritus in accordance with the relevant procedure. The procedures and requirements for conferring the titles of professor/doctor emeritus are determined in accordance with the charter of the higher education institution.

Article 24. Further education

24.1. Further education is a part of continuous education and professional training that enables every citizen holding a state document acknowledging completion of any level of the vocational-professional education, to acquire continuous education. The main objective of the further education is to develop human potential through life-long education, advance intellectual and professional training of specialists, adjust them to the continuously changing and modernizing working conditions, maintain active and efficient participation of the senior citizens in the social, economic, political and cultural life of the country.

24.2. Further education in the Republic of Azerbaijan includes the following areas:

24.2.1. in-service training;

24.2.2. re-training;

24.2.3. internship and advanced training;

24.2.4. repeated higher and vocational-professional education;

24.2.5. advanced degree studies;

24.2.6. adult education.

24.3. The regulations related to the content and implementation of further education is determined by the respective executive authority in accordance with the special curricula.

24.4. Further education is carried out at in-service and retraining institutions, special entities established under the institutions for vocational-professional education, internship and professional development courses, as well as other institutions with appropriate state license for operating in this field.

24.5. The citizens who receive education in any of the fields of further education are issued a certifying document in accordance with the procedures established by the respective executive authority. Incentives are provided to individuals who graduate from in-service training courses.

Article 25. Scientific research in the system of education

25.1. The scientific researches in the system of education are conducted by the relevant scientific-research entities operating under the educational management bodies, at the institutions of higher education and their relevant units (scientific-research institutes, centers, departments, laboratories and etc.).

25.2. The scientific researches carried out in the system of education are of fundamental and applied nature.

25.3. The scientific researches in the system of education are carried out using public funds, grants, resources from various funds, extra-budgetary funds generated by the educational institutions, outside orders and etc.

25.4. Scientific researches related to the educational development issues are innovative in nature and are aimed at the study of educational history, improvement of the structure and management of the education, organization of the teaching process on the basis of modern methodologies, development and implementation of new learning technologies and pedagogical innovations in other areas.

Article 26. The general procedures for student admissions to institutions of higher and secondary vocational-professional education

26.1. The student admissions to institutions of higher and secondary vocational-professional education fully maintain the citizens' right to education and is carried out on a competitive basis (except as provided by the section 26.5) by allowing students who have mastered the educational programs at the corresponding educational level and are competent and prepared, to independently select the specialization and educational institution of their own choosing.

26.2. The student admissions to institutions of higher and secondary vocational-professional education is carried out in accordance with the procedures established by the respective executive authority and based on the students' performance during the student assessment exams.

26.3. Every learner or his/her parents (legal representatives) may review the following legal documents that regulate the teaching process at the institutions of higher and secondary vocational-professional education:

26.3.1. the charter of the educational institution;

26.3.2. the special permit (license) that guarantees educational activities;

26.3.3. the accreditation document of the educational institution.

26.4. A student's achievements in the preceding stage of education are taken into consideration during the admissions to the institutions of higher and secondary vocational-professional only in accordance with the procedures determined by the respective educational authority.

26.5. The winners of world subject Olympiads, reputable international competitions and contests are entitled to direct admissions to the relevant specializations at the higher educational institutions. The list of these Olympiads, international competitions and contests is determined by the respective executive authority.

26.6. The student admissions to master's level programs at higher educational institutions is carried out for individuals holding a bachelor's or other higher educational degrees, in accordance with the procedures determined by the respective executive authority.

Article 27. The state document on education

27.1. Individuals who complete any stage and level of education at an educational institution which holds a special permit (license) and has passed state accreditation to operate in the field of education in the Republic of Azerbaijan, are issued a state educational document in accordance with the procedures established by the legislation.

27.2. The state document for completion of education constitutes a basis for pursuing one's education at the next level or commencing labor activity in the area of specialization.

27.3. Individuals who for various reasons fail to complete a certain phase and level of education receive a reference document from the educational institution in accordance with the procedure established by the respective executive authority.

27.4. Educational documents issued in foreign countries are recognized in accordance with the procedures established by the respective executive authority.

Article 28. Catering and medical services at the educational institutions

28.1. An educational institution establishes necessary conditions in accordance with the requirements and norms established by the respective executive authority in order to provide catering and medical services.

28.2. The catering services at a higher education institution are provided on the basis of a contract between the educational institution and the legal entity or the individual arranging the catering services.

28.3. The medical services which are provided to learners at an educational institution in accordance with the procedures established by the respective executive authority are offered free of charge.

Chapter III

Management of the educational system, the rights, duties and social protection of the subjects of education

Article 29. Responsibilities of the State in the field of education

29.0. The State responsibilities in the field of education are as follows:

29.0.1. define and implement the overall state educational policy;

29.0.2. define the concept of development and main priorities of the national system of education;

29.0.3. develop, approve and oversee the implementation of various state programs for development of the national system of education;

29.0.4. determine the priorities and specializations for training of specialists, as well as programs for training advanced scientific-pedagogical staff;

29.0.5. periodically monitor the implementation of state policy and state programs on education;

29.0.6. provide for integration of the national education to the world system of education and establishment of an educational system and environment that meets the international standards;

29.0.7. determine the amount of budget allocations and state education grants aimed at improving the educational sector and finance the public educational institutions;

29.0.8. for each fiscal year determine the norms for financing the public educational system, as well as the cost of education and norms per learner (secondary school student, university student, graduate and etc.);

29.0.9. define the student admissions plan for institutions of primary, secondary vocational-professional and higher education;

29.2.10. conduct the student assessment during admissions in accordance with the defined procedure;

29.2.11. create the state e-database system “Student-Graduate” and ensure its use;

29.2.12. develop and approve the state standards of education and programs (curricula) for each education stage and oversee the compliance of education to the relevant state standards;

29.2.13. appoint and discharge the heads of public education institutions in accordance with the procedure enshrined in the legislation;

29.2.14. determine the age limit for professors-teachers working at the public educational institutions to occupy academic and administrative positions;

29.2.15. approve exemplary statutes of education institutions in conformity with the level of education;

29.2.16. approve the statutes of public educational institutions, provide comments on statutes of municipal and private educational institutions;

29.2.17. define the overall requirements for organization of the educational process;

29.2.18. identify the intergovernmental, regional and international development programs in the field of education;

29.2.19. provide the establishment of unified system for statistical data in the field of education;

29.2.20. approve the samples of state education documents and their issuance procedures;

29.2.21. identify the procedures for recognition of education documents issued by foreign countries and provide nostrification services;

29.2.22. determine the norms for teaching loads of pedagogical staff at all higher educational institutions;

29.2.23. approve uniform norms for construction and material-technical provision of educational institutions, determine the overall sanitary-hygienic requirements, as well as student enrollment norms;

29.2.24. grant and revoke special approval (license) for the operation of educational institutions;

29.2.25. develop and approve the qualifications framework for institutions of primary, secondary vocational-professional and higher education;

29.2.26. carry out the scientific-methodological supervision and control over educational institutions;

29.2.27. carry out the state control of the quality of education in educational institutions;

29.2.28. define the regulations for accreditation of the educational institutions and conduct the accreditation;

29.2.29. define the attestation regulations and conduct attestation of the educators and the learners at the educational institutions, including the final attestation;

29.2.30. provide for coordination of the activities of the educational administration authorities, educational institutions, the public and non-governmental organizations associated with education;

29.2.31. provide for coordination of the scientific researches at the educational institutions;

29.2.32. adopt, amend and revoke normative-legal acts that regulate the operation of the educational system;

29.2.33. provide for development, approval and publication of the textbooks, subject resources and other teaching aids for the educational institutions;

29.2.34. determine the regulations and conditions for scientific titles and degrees;

29.2.35. provide compensation and incentivize the work of the staff at the educational institutions, establish individual and aimed scholarships to particularly talented learners;

29.2.36. maintain teaching, scientific, scientific-methodological support and information-communication technologies and other technical equipment for public educational institutions;

29.2.37. approve the basic educational plans and programs;

29.2.38. determine the actual need for specialist staff, including the pedagogical staff and regulate their employment;

29.2.39. provide for the implementation of the existing legislative acts in the field of education;

29.2.40. maintain provision of the free of charge medical services in public educational institutions;

29.2.41. arrange for minors that have lost parents or are deprived of parental protection be adopted by guardians (trustees) or enrolled in public boarding schools, oversee the fulfillment of their functions by the guardians and trustees, ensure that children with medical conditions are referred to special educational and social protection institutions.

29.2.42. carry out planning, forecasting, coordination, provision, assessment and other functions in the field of education.

Article 30. Administration of an educational institution

30.1. An educational institution is administered on the basis of the principles of openness, transparency and democracy in compliance with this Law, relevant normative-legal acts and its own statute.

30.2. Administration of a public educational institution is carried out by the management of the educational institution appointed by the respective executive authority. The highest governing bodies of public educational institutions are the scientific and pedagogical boards. The establishment and activities of the scientific and pedagogical boards are defined by the regulations approved by the respective executive authority and the statute of that educational institution.

30.3. Administration of a municipal educational institution is carried out by the management of the municipal educational institution appointed by the municipality.

30.4. Administration of a private educational institution is carried out by the management of the private educational institution appointed by the founding board (trustees).

30.5. The deputy head of an educational institution must be a citizen of Azerbaijan Republic if the founder(s) of this institution are foreign citizens or foreign legal entities, including if more than 51% of the statutory capital or stocks are owned by foreign legal entities or foreign citizens. The nomination of the head and the deputy head of such educational institution shall be agreed upon by the respective executive authority. The state registration of this educational institution can only be made once the nominations of the head and the deputy head are agreed upon.

30.6. Units of administration and self-administration (general meeting, trustees, scientific, scientific-methodological, pedagogical, parental and student boards) can be established at an education institution to provide for democratic and transparent administration of the educational institution. The procedure for establishment of these types of institutions is specified by the statute of the education institution.

30.7. The management of an educational institution is carried out by a rector, director or head depending on the status of that institution and in accordance with the statute of the educational institution.

30.8. The age limit for holding academic and administrative positions in an educational institution is determined the respective executive authority. The pedagogical staffs who reach this age limit are entitled to take part in the teaching and scientific activities of the educational institution provided that they do not hold any academic and administrative position.

30.9. No public and local self-government authority or any other entity, with the exception of the educational administration authorities may not interfere in the matters involving administration of an educational institution.

Article 31. Participants of the process of education

31.0. The following are the participants of the educational process:

31.0.1. learners – children, school children, students, cadets, master students, doctoral students and others;

31.0.2. educators (pedagogical staff) – teachers, assistants, advisors, tutors, mentors, assistant teachers, assistant mentors, pre-military training coaches, defectologists, logopedists, production training masters, practicing psychologists, sociologists-pedagogues, heads of children's unions at schools, methodologists, heads of study and music groups, scientific-pedagogical staff, engineering-technical who are directly involved in the teaching process, teaching-support staff, babysitters, instructors, librarians of the educational institutions, publishing-editing staff, staff at the leading units of the entities managing the education, supervisors at educational institutions and authorities involved in teaching-upbringing activities, concertmasters and trainers employed by educational institutions, staff from social protection, health and other authorities who are directly involved in the pedagogical activity and other individuals involved in the teaching-upbringing process;

31.0.3. parents or their legal representatives;

31.0.4. authorities that administer education and municipalities;

31.0.5. other individuals and legal entities involved in teaching-upbringing.

Article 32. Rights and responsibilities of learners

32.1. The rights and responsibilities of learners are determined in accordance with the Constitution of the Republic of Azerbaijan, this Law and other relevant legislative acts, international treaties that Azerbaijan is party to.

32.2. Students and graduates of all educational institutions have equal rights.

32.3. The learners' rights are to:

- 32.3.1. get admission to educational institutions in accordance with the procedures set forth by the legislation;
- 32.3.2. independently choose the educational institution, specialization, profession, the form of training and the language of education;
- 32.3.3. receive quality education up to the level of national standards of education;
- 32.3.4. choose the education profile, curricula and extracurricular activity;
- 32.3.5. freely choose the subjects, number of credits for each semester, educators and advisers-tutors in accordance with the teaching plans offered by the institution of higher education;
- 32.3.6. use the existing infrastructure (teaching-production, science-research, information, cultural-welfare, sports, fitness centers, libraries and etc.) of the educational institution;
- 32.3.7. change the educational institution and specialization in accordance with the established procedure;
- 32.3.8. take part in the scientific-research activity;
- 32.3.9. pursue uninterrupted education;
- 32.3.10. enjoy a learning environment that is free of health risks and hazards;
- 32.3.11. enjoy protection from behavior that humiliates human dignity and honor and contradicts the human rights;
- 32.3.12. temporarily suspend one's education at an educational institution in accordance with the established procedure;
- 32.3.13. seek re-assessment of one's knowledge in accordance with the procedure determined by the respective executive authority;
- 32.3.14. receive a one-time only free-of-charge education at the secondary professional-vocational and higher educational level in accordance with the legislation;
- 32.3.15. receive free-of-charge textbooks at the public and municipal institutions for comprehensive education;
- 32.3.16. participate in the organization and management of the educational process, freely express one's ideas and thoughts;
- 32.3.17. participate in the scientific, public, social and cultural life of the educational institution, take part in the establishment of scientific societies, study groups, associations, unions and other organizations, join similar types of national and international organizations;
- 32.3.18. participate in the organization of scientific-practical conferences, seminars, conventions and meetings, as well as other events associated with school life;

32.3.19. be entitled to other rights prescribed by law.

32.4. Involvement of learners in activities and events unrelated to the process of education, with the exception of cases defined by the legislation, is prohibited.

32.5. The learners' responsibilities are to:

32.5.1. acquire knowledge, abilities and practical skills in accordance with the national standards of education;

32.5.2. respect the honor and dignity of pedagogical staff;

32.5.3. comply with requirements specified by the regulations of the educational institution;

32.5.4. recognize one's responsibility before the country, the society, the parents and oneself;

32.5.5. comply with the requirements of the legislation on education, ethical norms and regulations associated with the learning and upbringing process.

32.5.6. fulfill other duties assigned by the legislation.

Article 33. Educators' rights and responsibilities:

33.1. The rights and responsibilities of educators are regulated by the Constitution of the Republic of Azerbaijan, this Law and other relevant legislative acts, international treaties that Azerbaijan is party to, the statute of the educational institution and its internal rules of discipline, as well as the employment contract concluded between the employer and educator.

33.2. The educators' rights are to:

33.2.1. be provided with normal conditions for work, scientific-pedagogical activity and education and technologies that meet modern standards;

33.2.2. get actively involved in the organization and management of the educational process in accordance with the statute of the educational institution;

33.2.3. freely choose the form, method and means of teaching;

33.2.4. require respect for his/her honor and dignity;

33.2.5. to hold positions at an educational institutions, as well as elect and be elected to positions;

33.2.6. To receive in-service training, new specialty, attend probationary work, advance professional levels and scientific degrees;

33.2.7. receive premiums and be rewarded;

33.2.8. for professors who have long performed exceptionally at educational institutions and have provided significant contributions to its scientific-pedagogical life, to hold an associate-professor position with the retention of the monthly salaries and supplemental payments, as well as other benefits and privileges, on the condition that they are free from any academic and administrative position;

33.2.9. be entitled to other rights under the legislation.

33.3. Educators' responsibilities are to:

33.3.1. participate in implementing the national policy in the field of education;

33.3.2. ensure that the educational programs (curricula) are acquired;

33.3.3. To cultivate the learners' civic position as independent personalities, prepare them to become patriotic, develop their initiative according to their abilities and skills, for them to live and work independently;

33.3.4. by his/her own work and personal example, instill feelings of respect and love to learners' for the independence of the Republic of Azerbaijan, its Constitution and laws, state attributes, the history, culture, language, customs and traditions, national and universal values of the Azerbaijani people, the society and the environment;

33.3.5. comply with pedagogical ethics and moral norms, honor the reputation of the teaching profession, exhibit characteristics of an intellectual person;

33.3.6. respect the learners' honor and dignity;

33.3.7. protect children and youth from any forms of physical, psychological violence, and deter them from harmful habits;

33.3.8. advance professional, scientific and pedagogical expertise, conduct scientific research, conduct additional workshops, extracurricular activities;

33.3.9. pass attestation within certain periods as defined by legislation.

33.3.10. fulfill other duties assigned by the legislation.

Article 34. The rights and responsibilities of parents (legal guardians)

34.1. The rights of parents (legal guardians) in the field of education are determined as the following:

34.1.1. choose the education institution for their minor children;

34.1.2. receive information about the organization of the educational process, the quality of education, their children's attendance, behavior and the academic performance at their chosen educational institution;

34.1.3. protect learners' rights, participate in the management of the educational institution;

34.1.4. collaborate with educational institutions and organizations, put forward suggestions and render voluntary donations for the improvement and upgrade of material-technical assets and technical support of the teaching process.

34.1.5. fulfill other rights assigned by the legislation.

34.2. Parents and other legal guardians have the following responsibilities in the education field:

34.2.1. provide conditions for their children's physical, moral and intellectual development at early age, ensure that their children receive compulsory comprehensive secondary education and upbringing;

34.2.2. ensure their children are brought up as humanistic, patriotic and labor-loving individuals who respect the language, literature and history of his/her people and national-spiritual and universal values.

34.2.3. fulfill other duties assigned by the legislation.

Article 35. Social protection of learners

35.1. Students at the public and municipal institutions of comprehensive secondary education are provided with textbooks at the expense of the state.

35.2. In order to encourage the learners' activity, stipends (including special stipends) and aid is provided to learners studying at public and municipal institutions of professional-vocational and higher education in accordance with legislation.

35.3. Other concessions may be offered to learners in accordance with legislation.

35.4. Social protection of learners studying at private educational institutions is regulated by the statute of that institution.

Article 36. Social protection of educators

36.1. The state guarantees for the social protection of educators. The scale of pay and official salary of educational staff is determined by taking into account their functional responsibilities, professional characteristics, professional qualifications and length of service.

36.2. The public and municipal educational institutions may determine additions to official salaries, rewards and other incentives from non-budget funds at its disposal.

36.3. The amounts paid to the scientific-pedagogical staff working at the public and municipal educational institutions in addition to their official salaries for scientific titles are determined by the respective executive authority.

36.4. Educational staff working in the educational institutions for children with disabilities, orphans and children deprived of parental care, children in need of strict conditions for upbringing, institutions for talented children, as well as staff working in mountaneous and border regions, remote residential areas receive additions to their rate of pay and official salary, in the amount determined by the legislation.

36.5. Graduates with pedagogical specialties from secondary and higher professional institutions, who as young specialists immediately start employment at institutions for comprehensive education, receive additional concessions and incentives as determined by the respective executive authority.

36.6. Educators are granted leaves for creative and educational work in accordance with procedures established by legislation.

Chapter IV

Educational economy

Article 37. Property relations in the system of education

37.1. The property of an educational institution consists of the property provided to it for ownership or permanent use by the state, municipality, founders (trustees), legal entities and individuals, as well as the assets and intellectual property products obtained through its activities permitted by the law.

37.2. The founder of an educational institution provides the educational institution with land lot, building and fittings, equipment, education, production, social, cultural, medical, welfare and sports infrastructure, other assets and material-technical infrastructure.

37.3. An educational institution bears responsibility for the upkeep, preservation and efficient use of the property under its ownership and use. The activities of an educational institution

with regard to management of the property are overseen by the founder or their legally authorized representative.

37.4. The enhancement and expansion of the material-technical infrastructure of a public educational institution is carried out using the state budget allocations and funds outside the budget.

37.5. An educational institution may obtain movable property and real estate, including buildings, equipment, new technologies, transportation vehicles and etc. as a result of providing services (teaching, scientific-research, consulting, treatment-prophylactic and other).

37.6. The privatization of public educational institutions (with the exception of institutions for pre-school education) is prohibited.

37.7. The property obtained by a public educational institution on its own funds becomes its property in accordance with the legislation.

37.8. The restitution of property allocated to an educational institution is carried out in accordance with the legislation.

37.9. An educational institution's bankruptcy proceedings are carried out in accordance with the legislation.

Article 38. Financing of the educational institutions

38.1. The State allocates spending from state budget and other sources for the development of education.

38.2. An educational institution is entitled to render various paid educational services to individuals and legal entities, engage in business activity, as well as receive voluntary donations and contributions from individuals and legal entities in accordance with procedures determined by the legislation. The funds, property and income obtained from such sources does not in any way affect the amount of funds allocated from the budget to that educational institution and is independently used in accordance with its statute.

38.3. An educational institution may only use its income for the development of education and the social protection of learners and educators.

38.4. The financing of a public educational institution is carried out on the basis of financial norms determined for each level of education. These norms are established by taking into account the cost per student, according to the mode, type and category of an educational institution.

38.5. The under-utilized comprehensive secondary schools set up in cases of need by order of the respective executive authority are financed at the rate above the established norms of financing.

38.6. A public educational institution acts independently in the use of its funds generated from the tuition fees and other non-budget resources in accordance with its statute. The public educational institution determines independently the amount of allocations from non-budget resources towards material incentives for the staff, or to providing assistance to educators and learners.

38.7. The state provides long-term and individual loans to support development of educational institutions and for eligible students to cover their tuitions and other related costs, as well as grants for scientific-research activities, financing of doctoral programs, studying the international experience and other purposes. The procedures and conditions for receiving educational loans and grants are defined and regulated under relevant legislative acts. The state grants for education and scientific-research may not be used to finance other activities of an educational institution.

38.8. The state provides favorable investment climate to attract investments, including foreign investments into the fields of education and for this purpose it proposes to investors concessions in accordance with the legislation.

38.9. Foreign investment in the system of education is carried out in accordance with the procedures established by the legislation.

Article 39. Sources of financing for public and municipal educational institutions

39.0. The public and municipal educational institutions are financed from the following sources:

39.0.1. state and municipal budget funds;

39.0.2. income from tuition fees;

39.0.3. special grants, bequeathed funds, voluntary contribution and aid provided by individuals and legal entities, including foreign citizens and foreign legal entities;

39.0.4. competition-based scientific-research grants allocated by the state;

39.0.5. income generated by the educational institution for educational, scientific, production, consulting and other services defined by the legislation;

39.0.6. funds allocated by individuals and legal entities under contract for the development of specialists, in-service training and re-training;

39.0.7. funds earned through special-purpose programs and projects financed by state authorities;

39.0.8. The proceeds from sale of physically & morally outdated equipment, transportation vehicles and other assets that belong to the educational institution but are unfit for the purposes of education;

39.0.9. grants and resources obtained by the educational institution through international cooperation;

39.0.10. resources obtained from other sources not prohibited by legislation.

Article 40. Financing of private educational institutions

40.1. A private educational institutions is financed from the following sources:

40.1.1. income generated for provision of educational services;

40.1.2. funds from founders (trustees);

40.1.3. funds from received grants and loans;

40.1.4. contributions, aid, bequeathed funds and gifts provided by individuals and legal entities;

40.1.5. income generated for providing educational, scientific, production, consulting and other services defined by the legislation;

40.1.6. resources obtained from other sources not prohibited by legislation.

40.2. private educational institution independently manages financial resources.

40.3. Private educational institution independently determines the tuition fee on the basis of curricula in each level of education.

40.4. The relations between the private educational institution and learners and their parents (legal guardians) are regulated under a contract.

Article 41. Business activity by education institution

41.1. An educational institution can engage in the type of business activities authorized by the respective executive authority and in accordance with the procedures prescribed in its statute in order to generate extra income.

41.2. The educational institution is authorized to freely dispose of its income obtained from business activities on the basis of the relevant legislation. The resources obtained by the public educational institution through business activities are channeled directly to the development of education and social protection of its staff.

41.3. An educational institution can establish legal entities or participate in the activities of other legal entities in accordance with the procedures defined by the legislation in order to conduct its business operations.

Article 42. Compensation for damages from inadequate education

42.1. In case an educational institution is found to have fallen short in the provision of education in accordance with the national standards of education, resulting in the poor training of its learners, the respective executive authority shall put forward a claim in the court of law to which the educational institution must provide remuneration for the damages incurred, including for the necessary costs related to the re-training of graduates or learners at another educational institution.

42.2. The claim may only be based on an unfavorable opinion issued by the accreditation service to the accredited educational institution (Section 42.1).

Chapter V

International relations in the field of education

Article 43. International cooperation and foreign relations in the field of education

43.1. The international cooperation in the field of education is carried on the basis of legislation of the Republic of Azerbaijan and international treaties it is party to.

43.2. An educational institution establishes direct relations with scientific and educational institutions and organizations of foreign countries, international agencies and foundations,

concludes bilateral and multilateral agreements for cooperation, joins unions (alliance, coalition, association, etc.) of public and non-governmental organizations and implements other forms of cooperation in line with the nature of its activities.

43.3. Educational institutions and establishments are empowered to carry out independent activity on the basis of relevant legislative acts, by engaging in the preparation of joint science and education projects, the organization of fundamental scientific-research and design-construction assignments, scientific-practical conferences, symposiums, exchange of students, master's students, doctoral students, teachers and scientific personnel, the purchase and sale of intellectual property products and patents and other similar areas.

43.4. Educational institutions (with the exception of special-purpose educational institutions) are entitled to establish joint structural bodies (centers, branches, laboratories, techno parks, etc.) in the country and abroad in cooperation with foreign counterparts, in order to improve the quality of its activities and expand international relations in compliance with the requirements of the existing legislative acts of the Republic of Azerbaijan.

43.5. There are no sovereign guarantees for direct international cooperation agreements of educational institutions.

Article 44. The right of Azerbaijani citizens to receive education abroad and the right of foreign citizens to receive education in Azerbaijan

44.1. The citizens of the Republic of Azerbaijan have the right to receive education and advanced training abroad at any level of education inasmuch as foreign citizens possess the right to receive education and advanced training in the Republic of Azerbaijan on the basis of quotas established by the state pursuant to international agreements with the Republic of Azerbaijan and direct agreements concluded by educational institutions, associations, legal entities and individuals at any level of education.

44.2. The procedures and terms of education for the citizens of the Republic of Azerbaijan to receive education abroad and for foreign citizens to receive education in the Republic of Azerbaijan, as well as recognition (nostrification) of educational documents is regulated on the basis of procedures established by the respective executive authority.

44.3. The right for education at the special-purpose educational institutions in the Republic of Azerbaijan is not allowed for foreign citizens, except in cases defined in international agreements.

Chapter VI

Transitional and final provisions

Article 45. Liability for violation of this Law

Individuals and legal entities in violation of this Law bear liability in accordance with the procedures set forth in relevant legislative acts of the Republic of Azerbaijan.

Article 46. Transitional provisions

46.1. The candidate of sciences degrees granted prior to the effectiveness of this Law are equated to the degree of philosophy doctor in the respective field.

46.2. The individuals enrolled in the aspirantura prior to the effectiveness of this Law are granted the status of doctoral student.

Article 47. Effectiveness of this Law

47.1. This Law comes into force on the day of publication.

47.2. The Law on Education of the Republic of Azerbaijan, No. 324 of October 7, 1992, (Information of High Council of the Republic of Azerbaijan, 1992, No, 24, article 1031; 1994, No. 16, article 216; 1995, No.7, article 123; Legislation of the Republic of Azerbaijan, 1997, No.3, article 226, No.4, articles 287, 294, No. 6, article 450; 1998, No.1, article 16; 1999, No.5, articles 285, 286; 2001, No.3, article 138, No.11, article 672, No.12, articles 731, 736; 2003, No.1, article 1; 2004, No.4, article 202, No. 6, article 415; 2007, No.11, article 1049) will expire after the present Law will come into force.